

Hanuman Singh v. Sri Megh Singh, Executive Engineer

High Court of Judicature at Allahabad · Single Judge · 16 November 2023 (final order dismissing the contempt application, per Hon'ble Rohit Ranjan Agarwal, J.; interlocutory orders of 30.9.2021 by Hon'ble Ajit Kumar, J. and 11.11.2021 by Hon'ble Prakash Padia, J.; underlying writ order of 22.8.2019) · 2023:AHC:217558 · Contempt Application (Civil) No. 3996 of 2021 (arising from Writ-C No. 20279 of 2019, decided 22.8.2019) · **Contempt application dismissed and contempt notice discharged (order dated 16.11.2023). The applicant complained of non-compliance with the writ-court's order dated 22.8.2019 in Writ-C No. 20279 of 2019, by which the writ court — the respondents having produced a corrected electricity bill and pointed to the applicant's remedy of approaching the higher authority under Clause 7.10 of the U.P. Electricity Supply Code, 2005 (which the applicant's counsel did not dispute) — had disposed of the writ petition directing that, if the applicant approached the higher authority under that provision, the authority would consider the matter and pass a reasoned and speaking order within four weeks. After earlier orders extending time for compliance (30.9.2021, in view of the Covid-19 second wave) and recalling a bailable warrant when it emerged that the applicant had not served the opposite party (11.11.2021), the Court found from the compliance affidavit that the applicant's representation had been decided on 12.11.2021. As the writ-court's order was only to the extent of deciding the applicant's representation, which the authorities had already done, no case for contempt was made out; the contempt application was dismissed and the notice discharged.**

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HEADNOTE

A writ court's direction relegating a corrected-bill grievance to the higher-authority remedy under Clause 7.10 of the U.P. Electricity Supply Code, 2005 and requiring a reasoned decision on the applicant's representation is fully complied with once the representation is decided; no contempt is then made out, the contempt court not being concerned with the correctness of the decision. The applicant had obtained a writ order dated 22.8.2019 (Writ-C No. 20279 of 2019) which, the department having produced a corrected bill and the applicant not disputing that his remedy lay before the higher authority under Clause 7.10 of the Code, disposed of the petition with a direction that if the applicant approached that authority it would consider the matter and pass a reasoned and speaking order within four weeks. Alleging non-compliance, the applicant filed this contempt application under Section 12 of the Contempt of Courts Act, 1971. After the Court (on 30.9.2021) granted a further opportunity to comply in view of the Covid-19 second wave, and (on 11.11.2021) recalled a bailable warrant on finding that the applicant himself had not served the opposite party, the compliance affidavit showed that the applicant's representation had been decided on 12.11.2021. Holding that the writ-court's order was only to the extent of deciding the representation, which the authorities had done, the Court found no case for contempt, dismissed the contempt application and discharged the notice.

FACTUAL SUMMARY

The applicant, Hanuman Singh, had filed Writ-C No. 20279 of 2019 (Hanuman Singh v. State of U.P. and 3 others) praying for a mandamus directing the respondents to correct his electricity bill and restore his connection. By order dated 22.8.2019 the writ court noted that the department had produced a corrected bill, received by the applicant on 1.6.2019, and that the department's counsel had pointed to the applicant's remedy of approaching the higher authority against the corrected bill under Clause 7.10 of the U.P. Electricity Supply Code, 2005 — which the applicant's counsel did not dispute. The writ court accordingly disposed of the petition directing that, in case the applicant approached the higher authority under that provision, the authority would consider the matter and pass a reasoned and speaking order within four weeks of production of a certified copy of the order. The applicant then filed this contempt application (No. 3996 of 2021) under Section 12 of the Contempt of Courts Act, 1971, alleging deliberate non-compliance with the 22.8.2019 order. On 30.9.2021 the Court (Hon'ble Ajit Kumar, J.) found prima facie merit but, in view of the Covid-19 second wave, granted the opposite party a further four weeks to comply. On 11.11.2021 the Court (Hon'ble Prakash Padia, J.), after the opposite party did not appear, issued a bailable warrant but recalled it on perusing an office report showing that the applicant had not supplied a copy of the application for service of notice. Ultimately, on 16.11.2023 (Hon'ble Rohit Ranjan Agarwal, J.), the compliance affidavit (filed 16.11.2021) showed that the applicant's representation had been decided on 12.11.2021, and the Court dismissed the contempt application and discharged the notice.

1. A corrected electricity bill is to be challenged before the higher authority under Clause 7.10 of the U.P. Electricity Supply Code, 2005; a writ court will relegate the consumer to that remedy, directing the authority to consider the representation and pass a reasoned and speaking order within a fixed time. **order of 22.8.2019**
2. Where a writ court's direction is only to the extent of deciding the applicant's representation, and the authority has decided it, the direction is fully complied with and no case for contempt is made out; the contempt court is not concerned with the correctness of the decision on the representation. **order of 16.11.2023**
3. In a contempt proceeding the court enforces the specific mandate of the order allegedly violated; wilful disobedience is not established where the compliance affidavit shows that the mandated step — here, deciding the representation — has been taken. **order of 16.11.2023**

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

RATIO

A corrected-bill grievance is to be pursued before the higher authority under Clause 7.10; the writ court relegates the consumer to that remedy with a direction to decide the representation by a reasoned and speaking order within a fixed time

QUESTION

What is the remedy of a consumer aggrieved by a corrected electricity bill, and how does the writ court dispose of a petition challenging such a bill?

HOLDING

The consumer's remedy is to approach the higher authority against the corrected bill under Clause 7.10 of the U.P. Electricity Supply Code, 2005. The writ court (by its order dated 22.8.2019, reproduced and enforced in this contempt proceeding), the department having produced the corrected bill and the applicant not disputing the Clause 7.10 remedy, disposed of the writ petition with a direction that, on the applicant approaching the higher authority under that provision, the authority would consider the matter and pass a reasoned and speaking order within four weeks of production of a certified copy of the order. **order of 22.8.2019**

EVIDENCE “the petitioner has remedy to approach the higher authority against the corrected bill under the provision as contained vide clause 7.10 of the U.P. Electricity Supply Code, 2005” **order of 22.8.2019**

EVIDENCE “the authority shall consider the same and pass appropriate order by means of reasoned and speaking order within period of four weeks from the date of production of certified copy of this order” **order of 22.8.2019**

FLAG Derives from the writ-court order of 22.8.2019 reproduced in and enforced by this contempt proceeding; order-sheet with several dated orders and no numbered paragraphs (pin_basis=date).

INTERPLAY · OFFTOPIC::contempt-civil

RATIO

A direction only to decide the applicant's representation is complied with once the representation is decided; no contempt is made out and the contempt court does not examine the correctness of the decision

QUESTION

Where the writ-court's direction was only to decide the applicant's representation and the authority has decided it, is a case for contempt made out?

HOLDING

No. The order of the writ court was only to the extent of deciding the representation of the applicant; the compliance affidavit showed that the representation had been decided on 12.11.2021. As the authorities had already done what the order required, no case for contempt was made out, and the contempt application was dismissed and the notice discharged. The contempt court's concern was compliance with the specific mandate to decide the representation, not the correctness of that decision. **order of 16.11.2023**

EVIDENCE “As the order of writ Court was only to the extent to decide the representation of the applicant which the authorities have already done, no case for contempt is made out” **order of 16.11.2023**

EVIDENCE “Contempt applicant stands dismissed.” **order of 16.11.2023**

FLAG Final order of 16.11.2023 (neutral citation 2023:AHC:217558) by Hon'ble Rohit Ranjan Agarwal, J.; the source reads 'Contempt applicant stands dismissed' (evidently 'application'), quoted verbatim.

clause-7.10-forum-ombudsman-route-for-billing-grievances The corrected-bill grievance was relegated to the Clause 7.10 higher-authority remedy, the authority to consider the representation and pass a reasoned and speaking order within four weeks. **order of 22.8.2019**

contempt-satisfied-once-directed-representation-is-decided The writ direction being only to decide the applicant's representation, its decision on 12.11.2021 fully complied with the order, and no contempt was made out. **order of 16.11.2023**

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — THE CORRECTNESS OF THE HIGHER AUTHORITY'S DECISION ON THE APPLICANT'S REPRESENTATION (DATED 12.11.2021) AND OF THE CORRECTED BILL

Not examined; the contempt court was concerned only with compliance with the direction to decide the representation, leaving the merits to be pursued through the appropriate remedy. **order of 16.11.2023**

RELATED CASES — SEE ALSO

SCJ-1137 — Clause 7.10 billing-grievance relegation to the higher authority (Parvez Akhtar v. U.P. Power Corporation Ltd.).

SCJ-1141 — Clause 7.10 billing-grievance relegation to the higher authority (Rais Ahmad v. U.P. Power Corporation Ltd.).

SCJ-096 — Clause 7.10 higher-authority remedy for a billing grievance — cognate relegation.

SCJ-2222 — Recent civil-contempt companion in the electricity context (same Judge in the final order), on the limits of contempt jurisdiction.

SCJ-2215 — OFFTOPIC civil-contempt sibling on compliance and the scope of contempt jurisdiction.